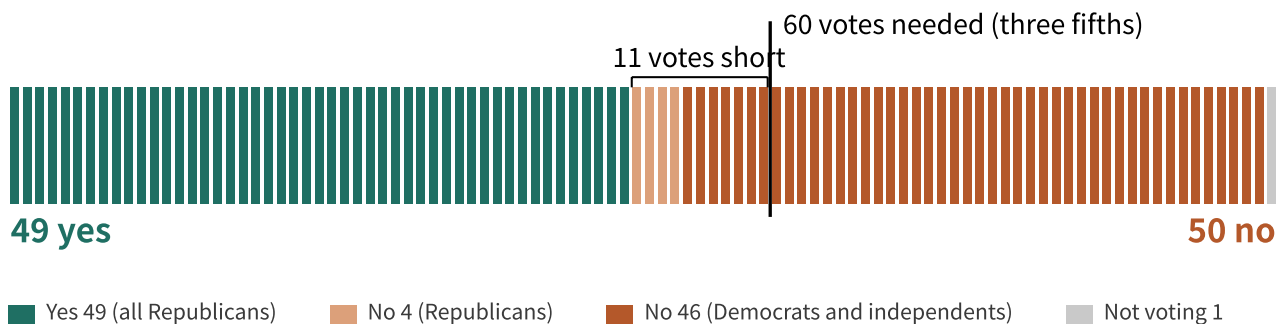


Eleven Votes Short

Why the CLARITY Act stalled on the Senate floor

Causes, open variables, stakeholders, regions, and what it means for AgenticFi



Cloture vote on the motion to proceed to H.R. 3633, 15 September 2026. Each bar is one senator. Sources: NPR, The Crypto Times, ABA Banking Journal ^{1,2,3}

Key points

On 15 September the Senate rejected the motion to open debate on the CLARITY Act by 49 to 50. Cloture needs 60 votes, and the bill did not even reach a simple majority. No Democrat voted yes, and three Republicans opposed it on the merits.

What blocked the bill was three distributive fights: an ethics title aimed at the president and his family's crypto businesses, a deposit fight between banks and exchanges over stablecoin rewards, and a jurisdictional fight among federal, state and tribal authorities over prediction markets and fraud enforcement. With seven weeks to the midterms, the political cost of conceding rose on every side. The technical question of how the SEC and the CFTC would divide the work barely featured in the final round.

For now, US crypto rules move to the SEC, the CFTC, the OCC and the Treasury, a path that is faster and easier to reverse. The rewards fight shifts into GENIUS Act implementation: an OCC final rule is targeted for November, Treasury comments close on 19 October and SEC comments on 20 October. Congress has one more window in the lame duck session, and it opens only if the two parties first strike an ethics deal.

For AgenticFi, the payment layer sits under GENIUS, so the direct hit is limited. What loses most is agent participation in trading and DeFi execution, along with infrastructure providers counting on statutory developer protection.

1

What happened on the day

49 : 50

Cloture vote
15 September 2026
2:15 p.m. ET

At 2:15 p.m. Eastern on 15 September, the Senate voted on whether to begin considering H.R. 3633. This was a procedural vote. Even a win would only have opened debate and amendments, with final passage still ahead, and the Senate text differs substantially from the version the House passed 294 to 134 in July 2025, so the two chambers would have had to reconcile again^{1,2}.

The result was 49 yes and 50 no. Every yes came from a Republican. Every Democrat present voted no, including the seven who had spent more than a year at the negotiating table: Kirsten Gillibrand, Mark Warner, Cory Booker, Raphael Warnock, Ruben Gallego, Angela Alsobrooks and Catherine Cortez Masto². Republicans Susan Collins, Josh Hawley and Jerry Moran voted no on the merits. Thom Tillis voted yes and then switched to no, because under Senate rules only a member of the prevailing side can move to reconsider, which preserves a procedural route back to the floor. Chris Coons did not vote^{1,3}.

Table 1. Composition of the 15 September cloture vote

Category	Votes	Composition
Yes	49	All Republicans
No	50	46 Democrats and independents; 4 Republicans, namely Collins, Hawley, Moran, and Tillis, who switched to preserve the right to move reconsideration
Not voting	1	Coons (D)
Needed for cloture	60	Three fifths of senators duly chosen and sworn

Sources: NPR, The Crypto Times, ABA Banking Journal^{1,2,3}

Getting to the floor took more than a year. The Senate Banking Committee reported its version 15 to 9 on 14 May⁴, and on 22 July the Banking and Agriculture titles were merged into a text of more than 600 pages⁵. Majority Leader John Thune filed cloture on the motion to proceed on 8 August, but the Senate left for the August recess without a vote^{6,7}. On 14 September, Cynthia Lummis, Tim Scott and John Boozman released the final substitute text, which they said contained 126 substantive changes requested by Democrats⁶.

The market reaction concentrated in the names with the most policy exposure. Coinbase closed down about 10 percent and Circle down 11.4

percent, giving back the previous session's gains on the release of the final text, while bitcoin dipped below 75,000 dollars before returning to around 76,000^{8,9}. On Polymarket, the contract on enactment during 2026 fell from roughly 30 percent on 14 September to 6 or 7 percent once the result was announced⁸. The same day, Circle launched the Arc mainnet with BlackRock, BNY and Standard Chartered among its partners¹⁰.

2

Why the bill could not pass

Start with the arithmetic. Republicans hold 53 seats, so even a united conference needed at least seven Democrats. On 15 September no Democrat voted yes, and the conference lost three votes on the merits of its own. The shortfall appeared at both ends, which is why no single concession could have produced 60.

The ethics title became the sticking point

\$1.4bn

Reported crypto income of Trump and his family in 2025, per the June financial disclosure

Democrats wanted limits on senior officials and their families running or profiting from digital asset businesses while in office. A financial disclosure published on 30 June showed that Trump and his family earned about 1.4 billion dollars from crypto ventures in 2025, and the weight of the issue grew from that point^{1,11}. The merged text of 22 July already carried an ethics title barring senior officials from issuing or promoting digital assets, but enforcement sat with the Department of Justice alone and the provisions were set to sunset in January 2029¹². Democratic negotiators focused on the enforcement design: a department led by a presidential appointee policing the president is hard to treat as a check, and the department is currently led by Todd Blanche, previously Trump's personal lawyer¹.

Over the weekend before the vote, Republicans offered new language. Federally elected officials and their spouses could not issue their own digital assets, which covers the \$TRUMP memecoin launched in early 2025, and Trump agreed to abide by that. Officials would have to divest significant financial stakes in the sector, and state attorneys general would gain more ability to sue where they suspected a breach¹. Critics read the changes as thin. As The American Prospect set out, a state attorney general could sue the US attorney general to compel enforcement action rather than bring a case directly, the Office of Government Ethics could stop such a suit, and the divestment requirement Democrats wanted for existing holdings was left out¹¹. The Democratic counteroffer that night mainly added those divestment requirements. According to Democratic staff

involved in the talks, staff for Banking Committee Chairman Tim Scott ended negotiations a few hours before the vote¹¹.

The two sides describe that sequence very differently. Lummis said afterwards that Republicans had accepted more than 120 Democratic requests and that the effort was over¹³. Warren said the final edits changed words only¹¹. Tillis had said publicly on 8 September that the bill would fail if the White House had no interest in bridging the ethics gap¹⁴. In drafting terms, a provision enforced by the executive branch against the head of the executive branch is difficult to make credible to the opposition. In political terms, seven weeks from an election, the cost of yielding on that provision was rising for both parties.

Stablecoin rewards opened a deposit fight

The GENIUS Act bars stablecoin issuers from paying interest or yield to holders, and the prohibition is written against issuers. Platforms paying rewards from their own funds to users who hold stablecoins sit outside that text. Banks, community banks above all, wanted CLARITY to close the gap, arguing that rewards pull deposits out of local institutions and weaken lending to small businesses and farms^{1,3}.

This is where the Republican conference split. In August, Hawley and Moran said publicly that they would not support the bill unless the rewards language changed¹⁵. In the final days, supporters offered a compromise under which regulators could restrict such rewards only if the Treasury Secretary found, within 18 months of enactment, that stablecoins had caused a substantial detrimental impact on community banks³. Bank groups were unconvinced by a trigger that fires after the fact. When Collins, Hawley and Moran voted no on 15 September, community bank pressure was the most widely cited reason^{2,3}.

The exchange side gave no ground either. A week before the vote, Coinbase chief executive Brian Armstrong answered criticism from JPMorgan chief executive Jamie Dimon by saying that critics with large payments businesses face a competitive issue, and noted that Goldman Sachs, BNY Mellon and Fidelity backed the bill¹⁶. The substance of the dispute is who passes on the interest earned on stablecoin reserves, and in what form. The Federal Reserve raised rates by 25 basis points on 16 September, its first increase since July 2023¹⁷. The higher short rates go, the larger that income and the sharper the fight.

Other fault lines that narrowed the room

The DeFi provisions and law enforcement were at odds for most of the year. Section 604 follows the Blockchain Regulatory Certainty Act, providing that software developers who do not control user funds are not money transmitters. The National Sheriffs' Association wrote to the Banking Committee in May arguing that this hands mixers and DeFi an exemption¹⁸. After White House-brokered talks, the merged text added a law enforcement tools title, groups including the Fraternal Order of Police endorsed the bill, and the sheriffs moved to neutral on 3 September^{5,19,20}. That dispute was largely settled before the vote, at the cost of negotiating time.

Prediction markets were mainly a Nevada issue. Both Democratic senators from the state, Cortez Masto and Jacky Rosen, voted no, and Cortez Masto said the bill would let prediction markets continue to operate around state and tribal law. The Indian Gaming Association called the outcome a win for tribal sovereignty²¹. State level opposition centred on enforcement authority, with 18 bipartisan attorneys general led by New York's Letitia James warning that the qualified transaction definition could preempt state fraud enforcement²².

The calendar and the electoral arithmetic

House Republican leaders cancelled the voting weeks of 21 and 28 September¹⁴, and the Senate is due to leave Washington in early October and return after the election²³. The closer the election, the more asymmetric the incentives. Democrats have made corruption a central midterm message, which raises the cost of conceding on ethics, while Republican leadership treated 15 September as the deadline and presented the Sunday text as its final offer¹¹.

Industry money did not convert into votes. Public Citizen counted about 206 million dollars spent by the crypto industry in this midterm cycle, more than any other corporate interest¹¹, and no Democratic senator voted yes. Whether industry committees such as Fairshake will spend against the senators who blocked the bill was undecided as of the vote²⁴.

Our reading

CLARITY failed because three distributive fights were loaded into one vehicle: banks against exchanges over deposits, federal authority against states and tribes over jurisdiction, and the two parties over who enforces limits on the president's own interests. Each fight had a clear loser, and a 60 vote threshold lets every loser stop the bill. The questions that once looked hardest, how the SEC and CFTC divide authority, how digital commodities are defined, how trading platforms register, barely appeared in the final weeks of public argument. That sets the starting point for the next attempt: the technical text can largely be reused, and the political conditions have to be assembled again.

3 What to watch next

CLARITY has not been withdrawn. H.R. 3633 stays on the Senate calendar, and the Tillis motion to reconsider lets leadership return to the same question without restarting the process^{2,25}. The variables now sit on four tracks: Congress, the agencies, GENIUS implementation, and the election.

Table 2. Main dates over the next 22 months

Date	Event	What to watch
16 September 2026	Joint statement by seven Senate Democrats ²⁶	Whether it turns into ethics text
Early October	Senate leaves until after the election ²³	Any bipartisan deal before recess
16 October	MAS stablecoin consultation closes ²⁷	Recognition standard for foreign stablecoins
19 October	Treasury GENIUS section 3 comments close ²⁸	Safe harbours against a Regulation S style approach
20 October	SEC Regulation Crypto Assets comments close ²⁹	Exemption caps and safe harbour conditions
3 November	Midterm elections	Control of both chambers
November (target)	OCC final GENIUS rule ²⁸	Whether the affiliate and related third party presumption survives
Post-election to 3 January 2027	Lame duck session ²⁵	Whether reconsideration is used
3 January 2027	119th Congress ends	Unfinished bills lapse and must be reintroduced
18 January 2027	GENIUS Act takes effect ³⁰	Issuer applications begin

Date	Event	What to watch
18 July 2028	Service providers may not offer non-permitted payment stablecoins to US persons ³¹	Distribution of foreign stablecoins in the US

Congress has one more window, and it needs a deal

Reconsideration solves the procedure, not the count. GENIUS also failed a procedural vote in May 2025 and cleared it 11 days later, and that time a deal was already on the table³². CLARITY has a calendar and no deal. The lame duck runs from after the election to the end of the 119th Congress on 3 January 2027, by which point members will know who controls the next Congress and appropriations will compete for floor time^{25,32}. On 16 September, seven Senate Democrats including Gillibrand, Warner, Gallego and Alsobrooks issued a joint statement calling the vote a setback and committing to keep working across the aisle²⁶. Whether that statement becomes ethics text is the earliest signal available.

The election changes the bargaining position on both sides. Forecast models and prediction markets since August have put the odds of Democrats taking the House above 80 percent, with the Senate close to even^{33,34}. If Democrats win the House, Maxine Waters would likely chair Financial Services; if they win the Senate, Elizabeth Warren would likely chair Banking²⁴. On that outlook, Republicans have reason to try once more in the lame duck, while moderate Democrats may prefer to negotiate ethics from a stronger position next year. If Republicans hold both chambers, the industry most likely restarts in 2027, reusing the technical text and repeating the committee process.

The agencies take over, and their rules can be undone

The day after the vote, SEC Chairman Paul Atkins and CFTC Chairman Michael Selig both said they would proceed under existing statutory authority, with Selig saying the CFTC was ready to ship its rules³⁵. The SEC's Regulation Crypto Assets, proposed on 18 August, contains two registration exemptions, one for raises up to 5 million dollars over four years and one for up to 75 million dollars in any 12 months, plus a conditional safe harbour under which a qualifying crypto asset is no longer treated as the subject of an investment contract. Comments close on 20 October^{36,29}. At the CFTC, Selig directed staff on 20 August to explore rules under the Commodity Exchange Act for leveraged and margined crypto trading and a possible new asset market designation for registered exchanges³⁷.

The agency path is quick and fragile. Atkins himself has said the new rules and exemptions will not be durable without a statute underneath them²⁴. A later commission can rewrite a rule through the same process, and courts can be asked to strike it down. Coin Center executive director Peter Van Valkenburgh has put the point plainly: the value of legislation lies in binding the next administration³⁸. For institutions planning three to five years out, the agency path offers a window, and its length depends on the 2028 election.

The yield fight moves to a new venue

November

OCC target for the final GENIUS rule

With CLARITY stalled, stablecoin rewards fall back on the GENIUS text and its implementing rules. The OCC proposal of 25 February sets a rebuttable presumption: where an issuer arranges for an affiliate or a related third party to pay yield to holders, the arrangement is presumed to breach the prohibition. Related third party covers anyone paying yield to holders as a service, and any party for whom the issuer issues on a white label basis³⁹. Comptroller Jonathan Gould has said he wants a final rule in November and expects to process issuer applications in 2027²⁸. The 18 month trigger in the CLARITY text went down with the bill, so whether platform rewards survive now turns on how much of that presumption the final rule keeps.

Treasury's section 3 proposal, issued on 17 August and published the next day, defines what it means to issue a payment stablecoin in the United States and to offer or sell one to a person located there⁴⁰. For foreign issuers and digital asset service providers it offers several safe harbours, including a reasonable belief that counterparties are outside the US, controls against US directed activity, and no US targeted advertising. A service provider that performs reasonable diligence may rely on a foreign issuer's representations about its compliance capability, and Treasury is weighing an alternative modelled more closely on Regulation S^{31,41}. Transactions through self custody wallets, and transfers between an individual's US and non-US accounts at the same parent company, are statutory exemptions^{42,43}. Comments close on 19 October²⁸. From 18 July 2028, service providers may not offer non-permitted payment stablecoins to US persons³¹. For cross-border corridors, these details matter more than CLARITY did.

Two external variables

The first is rates. After the September increase, reserve income rises, which widens both issuer margins and the space for platform rewards, and

sharpens bank concern about deposit flight¹⁷. The second is tax and foreign rules. The House Ways and Means Committee advanced digital asset tax bills on 16 September covering the timing of mining and staking income and wash sale treatment^{44,45}. Singapore, Hong Kong, the EU and Japan all moved their own frameworks forward this year, and while US legislation is stalled those rules will serve as the reference point for multinational institutions, as section 5 sets out.

4

Who is affected, and how much

Table 3 sets out short term effects and medium term tests by stakeholder. Several groups move in different directions.

Table 3. Stakeholders

Stakeholder	Short term	Medium term
US exchanges	Share prices fell; derivatives, prediction markets and tokenised assets now depend on agency rules and exemptions	Whether the CFTC creates a new trading category; whether platform rewards survive
Stablecoin issuers	GENIUS proceeds on schedule and the licensing path is unchanged	Scope of the OCC yield presumption; applications from 2027
Banks and community banks	The rewards arrangement in the final text did not become law	Pressing for a broader yield prohibition in OCC and Treasury rules; tokenised deposits
DeFi developers	Statutory developer protection lost	FinCEN and DOJ enforcement posture
Prediction markets, states, tribes	No expansion of federal authority; existing disputes continue	CFTC position on event contracts; state enforcement and litigation
Trump family businesses	Ethics limits did not become law	Congressional investigations if the House changes hands
SEC, CFTC, OCC, Treasury	More rulemaking authority and more workload	Whether rules are finalised before 2028 and survive litigation
Asian exporters and payment firms	The compliance path for dollar stablecoins still runs through GENIUS	Treasury safe harbours; comparability findings for Hong Kong and Singapore

Exchanges and issuers were hit in different ways. Much of what Coinbase has been building, including CFTC regulated perpetuals for US customers, prediction markets and tokenised assets, assumed market structure legislation, so each line now waits for a rule or an exemption¹⁰. Circle's issuance business runs on the GENIUS path and its licensing timetable is unaffected by this vote; the variables that matter more for it are how the OCC final rule treats platform rewards and how far USDC usage grows in trading and payments.

What the banks won is mainly time. The arrangement least favourable to community banks did not become law, but how far the yield prohibition reaches is now decided by OCC and Treasury rules, and the OCC proposal already reads the statute strictly³⁹. The FDIC proposal also states that tokenised deposits count as deposits for insurance purposes⁴⁶, which gives banks another route to compete on chain.

DeFi developers lost a statutory line. The bill would have used control of customer funds as the test for Bank Secrecy Act obligations, and that line is again drawn by existing FinCEN guidance and case by case enforcement¹⁸. The current administration's posture is comparatively friendly, and nothing in the present rules locks in the position after 2029³⁸.

The Trump family businesses sit in a particular position. The ethics limits did not become law, and World Liberty Financial received conditional OCC approval for a bank charter in August, a first step toward becoming a permitted payment stablecoin issuer under GENIUS¹¹. Political exposure stays high through the election, and congressional investigations become more likely if the House changes hands²⁴.

For firms expanding out of Asia and for cross-border payment providers, the effect depends on where the entity sits. Teams whose entity, customers, staff and cash flows are all onshore in mainland China work within the boundary set by Document 42, which this vote does not move^{47,48}. Firms with Hong Kong or Singapore entities that plan to serve US customers or connect to US platforms should track the GENIUS milestones instead: the final wording of Treasury's safe harbours, whether Hong Kong and Singapore regimes are found comparable to GENIUS, and which stablecoins US platforms may list after July 2028^{40,43,31}.

5 How the regions differ

A stalled US bill does not automatically benefit anyone else. Institutions choosing a base look at three things: whether the rules are already in force, whether they accommodate the business model, with yield and distribution the usual sticking points, and whether they provide access to dollar liquidity.

Table 4. Six jurisdictions compared

Jurisdiction	Framework and 2026 milestones	Change after the CLARITY vote	What to watch
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Jurisdiction	Framework and 2026 milestones	Change after the CLARITY vote	What to watch
United States	GENIUS enacted, effective 18 January 2027; market structure depends on SEC and CFTC interpretation	Legislation restarts in 2027 at the earliest; rules become easier to reverse	OCC final rule; Treasury section 3; SEC Regulation Crypto Assets
Hong Kong	Stablecoins Ordinance in force since August 2025; first two issuer licences on 10 April 2026 ⁴⁹	Licensed issuance with authorised distribution is cited more often as a model	Volume of HKD stablecoin launches; US comparability finding
Singapore	Consultation on Payment Services Act amendments opened 1 September, closes 16 October ²⁷	Recognition of foreign stablecoins could become the entry point for dollar coins in wholesale use	Legislative timetable; recognition criteria
European Union	MiCA transition ended 1 July, with roughly 213 authorised providers; interest on e-money tokens prohibited ^{50,51}	Both stablecoin and service provider rules now fully apply, which widens its certainty advantage	Whether a later revision addresses yield and multi-issuance
Japan	FIEA amendment passed 15 July, adding insider trading rules ⁵²	Investor protection moves closer to securities regulation	Entry into force and exchange adjustments
Mainland China	Document 42 issued by eight agencies on 6 February; no RMB-pegged stablecoin issuance offshore without approval ⁴⁷	The onshore boundary is unchanged	Case by case treatment of offshore entities controlled onshore

Hong Kong's advantage is that the path has been walked. The Stablecoins Ordinance took effect on 1 August 2025, and on 10 April 2026 the HKMA licensed Anchorpoint and HSBC. Anchorpoint is a joint venture of Standard Chartered Bank (Hong Kong), HKT and Animoca Brands and plans to reach retail users through authorised distributors, while HSBC plans to connect a Hong Kong dollar stablecoin to PayMe and its mobile app in the second half of the year⁴⁹. With US legislation stalled, that structure will be cited more often across Asia. Its limits are equally clear: a Hong Kong dollar coin serves local and regional use cases, while dollar settlement still runs back to GENIUS regulated dollar stablecoins and to whether US authorities find the Hong Kong regime comparable.

Two points in the MAS consultation of 1 September bear directly on cross-border work. Stablecoins jointly issued by a Singapore entity and a foreign issuer could carry the MAS regulated label, and a limited number of foreign-issued stablecoins under comparable regimes could be recognised for wholesale cross-border use. The consultation closes on 16 October²⁷. This runs in the same direction as Treasury's comparability approach. If both sides adopt recognition, licensed dollar stablecoins will circulate more smoothly in Singapore wholesale flows, which is a cross-border variable worth tracking more closely than CLARITY itself.

In the EU, the MiCA transition ended on 1 July and unauthorised providers must wind down in an orderly way⁵⁰. Elliptic's review of the ESMA interim register counted about 213 authorised providers across 23 jurisdictions⁵¹. MiCA prohibits interest on e-money tokens, which is stricter than the current US position, and practitioners are already discussing whether a later revision should address yield-generating activity and multi-issuance⁵⁰. While Washington is stalled the EU's certainty advantage grows, though its yield restrictions also mean some business models cannot be replicated there.

Japan's Diet passed the FIEA amendment on 15 July, moving crypto assets out of the payments statute into the financial instruments framework, raising the maximum sentence for unregistered operators from three to ten years and introducing insider trading rules⁵². Japan is treating crypto assets as investment products, which contrasts with the SEC's current work to lower issuance barriers through exemptions and safe harbours.

In mainland China, the People's Bank and seven other agencies issued Document 42 on 6 February, replacing the 2021 Document 237. Virtual currency business activity onshore remains an illegal financial activity, and no entity or individual, onshore or offshore, may issue an RMB-pegged stablecoin outside the mainland without approval. The CSRC issued guidance the same day on tokenised asset-backed securities issued offshore against onshore assets^{47,48}. Han Kun reads the offshore issuance restriction as extending to offshore entities controlled by onshore entities, with stablecoin services inside payment chains assessed case by case⁵³. The US outcome does not move any of those boundaries.

6

Where AgenticFi actually takes the hit

AgenticFi here means AI agents initiating and completing financial actions within limits a person has set, including payments, management of idle balances, and execution on trading venues or DeFi protocols. The field has grown quickly. Coinbase says that of roughly 165 million agentic payments to date, more than 90 percent settled on Base using the x402 protocol and USDC¹⁶. Tempo, incubated by Stripe and Paradigm, launched mainnet on 18 March alongside the Machine Payments Protocol, with design partners including Visa, Mastercard, OpenAI, Anthropic and Standard Chartered⁵⁴, and on 17 September Ripple added support for MPP to its developer kit⁵⁵. An IMF note published in April treats cryptographically verifiable mandates as the core mechanism of agent payments⁵⁶.

US rules bind AgenticFi in four layers, and the CLARITY outcome lands very differently on each.

Table 5. Four rule layers for AgenticFi

Layer	Typical use	What governs it now	Effect of the CLARITY failure
Payments and settlement	Per-call payment for APIs, data and compute; agent to agent settlement	GENIUS Act with OCC and Treasury rules; FinCEN money transmission rules	Low GENIUS proceeds on schedule; unclear whether company-deployed agent wallets fall under the self custody exemption
Idle balances and yield	Pre-funded agent wallets; sweeping balances into yield products	GENIUS yield prohibition; proposed OCC affiliate presumption; tokenised funds under securities law	Medium The 18 month trigger is gone; platform rewards now turn on the OCC final rule
Trading and DeFi execution	Placing orders, rebalancing, calling DeFi protocols for a user	SEC and CFTC interpretations and proposals; enforcement discretion	High Digital commodity definitions, spot venue registration and developer protection all lapsed
Identity, mandate, liability	Verifying agent identity, scoping authority, allocating fault	No dedicated rules; industry standards such as AP2, plus contract	None Outside CLARITY's scope, and more important as a result

The payment layer sits under GENIUS and carries most of today's volume. With CLARITY stalled, it depends more heavily on how the GENIUS rules are written, and two questions are worth raising before those rules are finalised. First, the statutory exemption covers transactions through a wallet where an individual keeps custody of their own assets^{42,43}, and the proposal does not directly answer whether a wallet deployed by a company and operated by an agent qualifies. Second, whether a facilitator that verifies and settles payments in protocols such as x402 and MPP is a money transmitter. For protocol developers who never touch user funds, section 604 would have supplied a statutory answer, and that certainty is what was lost; for parties that briefly control funds at settlement, the analysis was always case by case under existing FinCEN guidance¹⁸.

The idle balance layer is where agent treasury management lives. Agent wallets generally need to be pre-funded, and because GENIUS bars issuers from paying interest, companies look for other ways to earn on those balances⁵⁷. If the OCC final rule keeps the affiliate and related third party presumption, a platform with an issuer relationship will struggle to pay rewards on agent wallet balances, and the money moves toward tokenised money market funds, which brings agents inside securities regulation³⁹.

Trading and DeFi execution takes the heaviest hit. An agent placing orders, rebalancing a portfolio or calling a DeFi protocol runs into the definitions of broker, trading venue and investment advice, and in the digital commodity space those definitions were meant to come from CLARITY. The SEC's Regulation Crypto Assets addresses offerings, and the release itself notes that how these offerings interact with exchange, broker and dealer registration remains open⁵⁸, while the CFTC's new category is still at the study stage³⁷. Until rules arrive, agent plus DeFi products aimed at US users will stay conservative by design, and some experimentation moves to the EU, Hong Kong and Singapore, where the rules are clearer and the limits on yield and retail distribution are tighter.

The identity and liability layer was never in CLARITY's scope. Agents have no legal personality, so responsibility falls on whoever deploys and funds the wallet⁵⁷. In a period of scattered and reversible rules, mandates, spending caps and real time auditing are the first things a compliance review will ask about⁵⁶.

Our reading

The vote changes the order of work for AgenticFi teams. Payment products can proceed on the GENIUS timetable while tracking OCC and Treasury detail. Treasury products should hold their yield design until the OCC final rule lands. Trading and DeFi products can ship tools in the US that never control user funds, and test custody and execution on a customer's behalf where the rules are clearer. Agent payment schemes from card networks and banks do not depend on this bill, so their relative position in the US improves. One risk is easy to miss and sits inside the agents themselves: a model trained before 15 September may still describe CLARITY as about to become law, and agents that answer compliance questions from a model are most likely to fail on exactly this kind of date-sensitive fact.

7

How CBSR handles the change

CBSR keeps dated research records that answer whether something can be done in a given jurisdiction as of a given date, with each conclusion carrying its official source, a pinpoint and a last-checked date. The 15 September vote enters the register within seven days on the usual cadence. Events that depended on CLARITY taking effect are marked unlikely in this Congress, with the history preserved. Records touching stablecoin yield are re-anchored to the GENIUS text and to the OCC and Treasury rules. The

GENIUS effective date stays as a trigger and will be re-checked when final rules appear.

The public outputs for the next three months shift with it. The first is a comment letter on Treasury's section 3 proposal, planned for submission by 16 October, taking two of three question groups: safe harbours for foreign issuers against the Regulation S style alternative, diligence standards where a service provider relies on issuer representations, and who counts as the issuer in cross-border white label and distribution models. The evidence comes from mapping Hong Kong, Singapore, EU and Japanese rules against those options. The second is a Chinese-language corridor brief, with a first issue on Hong Kong licensed issuers and cross-border use and a second on the boundary for offshore entities controlled onshore after Document 42. The third is a regulatory timeliness benchmark for AI systems, drawing questions only from dual-reviewed records, for example whether CLARITY had become US law as of 16 September 2026, where the reference answer is no because cloture failed on 15 September.

On AgenticFi, no new tooling for now. The next step is a small set of dated questions in the register and the benchmark: whether the self custody exemption covers agent wallets, how far the OCC yield presumption reaches in the final rule, and whether the CFTC creates a spot category that agents can access. Each has an official document and a date against which it can be checked.

Notes

Information is current to 17 September 2026. Vote and market data come from published reporting. Regulatory content follows official texts and law firm analysis. A few details rest on a single outlet's reporting, such as the negotiations in the hours before the vote, and are attributed in the text. This is a research summary. It is not legal advice and not investment advice, and it does not assess or recommend any token or trade. CBSR updates affected records within seven days of a rule change.

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